BACK TO
AYALALAND MALLS, INC.

AyalaLand MALLS, INC.

18 January 2024

CONTRACT OF LEASE RENEWAL

Mr. Adrian P. Dimacali
Mary Grace Ensaymada - Fc
Mary Grace Foods Inc.
Food Choices, Glorietta 4
Ayala Center, Makati City

Dear **Mr. Dimacali:**

This refers to your lease for the operation of your "**MARY GRACE ENSAYMADA - FC**" outlet, which was expired last **31 December 2023.**

We shall be glad to renew your lease under the same terms and conditions stated in our Contract of Lease (as amended, if applicable), subject however to the following amendments and your compliance with the conditions set forth herein:

1. **TERM:** Your lease shall be renewed from **01 January 2024 to 31 December 2024** (the "Renewed Term").

2. **AREA:** **5.40** square meters.

3. **RENT:** Your monthly rent per square meter for the Renewed Term shall be equivalent as follows:

	Period	Rate per sqm
From	01 January 2023 to 31 December 2023	P14,520.00
To	01 January 2024 to 31 December 2024	P15,980.00

*plus the applicable VAT

4. **ADDITIONAL SECURITY:** You shall deliver to us the Additional Security as required under the Contract of Lease. You shall therefore pay us on the date specified in the Statement of Account the excess of the new security deposit over the amount of the Additional Security already remitted to us.

New Security Deposit	P	517,752.00
Less: Existing Security Deposit	P	470,448.00
Additional Security Deposit	P	47,304.00

5. **CUSA & INAC:** Effective **01 January 2024,** your monthly common area and fixed air-conditioning charges shall be adjusted as follows:.

CUSA	INAC
P150.00/sqm	P140.00/sqm

6. **ZING LOYALTY PROGRAM AND SCAN TO PAY FACILITY:** (a) As part of the consideration for the grant of the lease, the LESSEE shall enroll as member and participate in Ayala Malls' Zing Loyalty Program and submit such form and information necessary for the LESSOR to grant LESSEE's customers with Zing loyalty points for every eligible spend or purchase in the Leased Premises. The LESSEE shall accordingly adopt such scan-to-pay facilities accredited by the LESSOR as payment options in the Leased Premises. (b) The LESSOR shall issue and the LESSEE shall display in the Leased Premises such marketing materials (including, but not limited to, acrylic table standee, flyers, and/or "Zing" door/window sticker or hanger) which shall feature the Zing logo, among others, in order to convey to customers that the LESSEE is a participating merchanting in the Ayala Malls' Zing Loyalty Program. The LESSOR may vary the design and execution of such marketing materials from time to time. The LESSEE may also request for or use customized marketing materials, subject to mutual agreement of the LESSOR and the LESSEE. (c) As a participating merchant in the Ayala Malls' Zing Loyalty Program, the LESSEE may be requested to promote the use of Ayala Malls' Zing to its customers for the latter to earn loyalty points for every eligible spend or purchase. The LESSEE, at its option, may also enter into specific co-marketing promotions with the Ayala Malls' Zing Loyalty Program.

7. **OTHER CONDITION:** As part of the consideration for the grant of this lease, the LESSEE agrees that all its sodas, water, beverages, ice and other related requirements shall be purchased from the LESSOR and/or its accredited supplier.

8. **NOTICE:** Where demand or notice is required to be given under this Contract, notice sent to the LESSEE (a) at the Leased Premises or at the address specified above either by registered mail, private courier or by personal delivery; (b) by e-mail at the address specified in the Merchant Information Sheet; or (c) via the Ayala Mall's

Merchant Portal shall be considered sufficient compliance with the requirement of notice or demand. The LESSEE undertakes to inform the LESSOR regarding change of address or email address..

Except as provided above, all other terms and conditions of our Contract of Lease shall remain the same. Terms used herein shall have the same meaning as that provided in our Contract of Lease.

FEB 29 2024

Kindly indicate your conformity below and return to us the original and one (1) copy of this letter **not later than** _____. Should we not receive a reply from you with regard to this matter on or before the said date, we will deemed it to mean that you have ACCEPTED and AGREED to all the terms and conditions herein stated. This letter, when signed or deemed accepted by you shall constitute an amendment and addendum to our Contract of Lease and shall form an integral part thereof.

As our valued partner, we take utmost priority in keeping your account updated and ensuring that our correspondences reach you as intended. In this regard, kindly fill up the attached Merchant Information Sheet and return to us together with this renewal letter.

Sincerely,

SHERLENE JOYCE R. CRUZ II
Attorney-in-Fact
Ayalaland Malls, Inc.

MELYN CATHERENE A. GARCIA
Attorney-in-Fact
Ayalaland Malls, Inc.

CONFORME:
Mary Grace Foods Inc.
By;

_____
Mr. Adrian P. Dimacali
6000000003622

Date: 8 Jan. '25